



Control of Office and Industrial Development Act 1965

1965 CHAPTER 33

An Act to impose further restrictions (with retrospective effect, in the case of land in the metropolitan region) on the development of land in so far as any such development may relate to office premises; to provide, in relation to industrial development, for modifying the exemptions conferred in England and Wales by section 39 of the Town and Country Planning Act 1962 and in Scotland by section 19 of the Local Employment Act 1960; and for purposes connected with the matters aforesaid. [5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

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OFFICE DEVELOPMENT

- 1.—(1) This Part of this Act applies to any development of land which consists of or includes—
- (a) the erection of a building containing office premises, or
 - (b) the extension or alteration of a building by the addition of, or the conversion of premises into, office premises, or
 - (c) a change of use whereby premises which are not office premises become office premises.
- Development requiring office development permit.

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(2) The areas to which this Part of this Act applies are—

- (a) the metropolitan region ;
- (b) any area in Great Britain outside the metropolitan region which is for the time being designated for the purposes of this paragraph by an order made by the Board of Trade :

Provided that the Board of Trade may at any time by order direct that the metropolitan region, or a part of that region specified in the order, shall cease to be, or to be included in, an area to which this Part of this Act applies.

(3) Subject to the following provisions of this Part of this Act, an application to the local planning authority for planning permission to carry out any development to which this Part of this Act applies on land within an area to which this Part of this Act applies shall be of no effect unless a permit (in this Part of this Act referred to as an "office development permit") in respect of that development is issued under this Part of this Act by the Board of Trade, and a copy of the permit is furnished to the local planning authority together with the application.

(4) In exercising their discretion to issue or withhold office development permits, the Board of Trade shall have particular regard to the need for promoting the better distribution of employment in Great Britain.

Exemption by
reference to
office floor
space.

2.—(1) Notwithstanding anything in the preceding section, an office development permit shall not be required for the purposes of an application for planning permission to carry out any development (in this section referred to as "the proposed development") if the office floor space to be created by the proposed development, together with any office floor space created or to be created by any related development, does not exceed the prescribed exemption limit.

(2) For the purposes of the preceding subsection development shall, in relation to an application for planning permission (in this section referred to as "the relevant application"), be taken to be "related development" if—

- (a) it related, or is to relate, to the same building as that to which the proposed development is to relate (in this subsection referred to as the "relevant building"), or
- (b) it related, or is to relate, to a building which is, or is to be, contiguous or adjacent to the relevant building, and it was, or is to be, development comprised in, or for the purposes of, the same scheme or project or for the purposes of the same undertaking as the proposed development,

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and (in either case) it fulfils one or other of the conditions mentioned in subsection (3) or subsection (4) of this section, as the case may be, and is not excluded by subsection (5) of this section.

(3) The said conditions, in relation to land within the metropolitan region, are—

- (a) that it is development for which, before the date of the relevant application, planning permission has been granted by a planning decision made on or after 5th November 1964 (whether before or after the passing of this Act) ;
- (b) that it is development (not falling within the preceding paragraph) which has (whether before or after the passing of this Act) been initiated on or after 5th November 1964 but before the date of the relevant application and is not development for which planning permission was granted by a planning decision made before 5th November 1964 ;
- (c) that it is development in respect of which an application to the local planning authority for planning permission either is pending on the date of the relevant application or is made on that date.

(4) The said conditions, in relation to land within an area to which this Part of this Act applies outside the metropolitan region, are—

- (a) that it is development for which, before the date of the relevant application, planning permission has been granted by a planning decision made on or after the specified date ;
- (b) that it is development (not falling within the preceding paragraph) which has been initiated on or after the specified date but before the date of the relevant application and is not development for which planning permission was (whether before or after the passing of this Act) granted by a planning decision made before the specified date ;
- (c) that it is development in respect of which an application to the local planning authority for planning permission either is pending on the date of the relevant application or is made on that date,

and in this subsection “the specified date”, in relation to an area, means such date (not being earlier than the date on which the order comes into operation) as may be specified in the order designating that area as an area to which this Part of this Act applies.

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(5) Where, before the date of the relevant application, an office development permit has been issued in respect of development which, apart from this subsection, would be related development for the purposes of subsection (1) of this section,—

- (a) the development in respect of which the permit was issued, and
- (b) any other development which was carried out before the issue of that permit, or for which planning permission was granted by a planning decision made before the issue of that permit,

shall not be taken to be related development for those purposes.

(6) In this section “the prescribed exemption limit”, subject to the next following subsection, means 3,000 square feet; any reference to development relating to a building is a reference to development consisting of or including the erection, extension or alteration of the building or a change of use of the whole or part of the building; and any reference to an application pending on a particular date is a reference to an application made before that date and not withdrawn, where no planning decision on that application has been made before that date.

(7) The Board of Trade may by order direct that such number of square feet (whether greater or less than 3,000 but not less than 1,000) as may be specified in the order shall be the prescribed exemption limit for the purposes of this section, either generally or in relation to any particular area to which this Part of this Act applies in accordance with subsection (2) of the preceding section or in relation to any particular part of such an area.

Retrospective
control in
metropolitan
region.

3.—(1) In relation to an application made to the local planning authority before the passing of this Act for planning permission to carry out development to which this Part of this Act applies on land within the metropolitan region, where no planning decision has before the passing of this Act been made on that application,—

- (a) subsection (3) of section 1 of this Act, with the substitution, for the words “together with the application”, of the words “as soon as practicable after the permit is issued”, and

(b) subsection (4) of that section and section 2 of this Act, shall have effect as they have effect in relation to applications for planning permission made after the passing of this Act.

(2) Where before the passing of this Act an application was made to the local planning authority for planning permission for development consisting of or including the erection on land in Greater London of a building containing office premises, or consisting of or including the extension of a building on land in

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Greater London by the addition of office premises, and on that application planning permission for such development was granted before the passing of this Act, then, unless that planning permission was granted before 5th November 1964 and either—

- (a) a building was before that date erected, or (as the case may be) the building was before that date extended, in accordance with that planning permission, or
- (b) a building contract was made before that date which specifically related to the land, or part of the land, in respect of which the planning permission was granted and which provided for the erection thereon of such a building, or the making of such an extension, in accordance with that planning permission,

the provisions of subsection (5) of this section shall (except where subsection (4) of this section or section 5(2) of this Act applies) have effect in relation to that planning permission.

(3) Where before the passing of this Act an application was made to the local planning authority for planning permission—

- (a) to carry out, on land in Greater London, development to which this Part of this Act applies, other than such development as is mentioned in the last preceding subsection, or
- (b) to carry out any development to which this Part of this Act applies on land within the metropolitan region but outside Greater London,

and on that application planning permission to carry out the development in question was granted before the passing of this Act, then, unless the planning permission was granted before 5th November 1964, the provisions of subsection (5) of this section shall (except where the next following subsection applies) have effect in relation to that planning permission.

(4) Notwithstanding anything in subsection (2) or subsection (3) of this section, the provisions of the next following subsection shall not have effect in relation to planning permission for any development if the office floor space to be created by that development does not exceed 3,000 square feet.

(5) Where in accordance with subsections (2) to (4) of this section the provisions of this subsection are to have effect in relation to planning permission granted for carrying out development on land within the metropolitan region, then, subject to section 4 of this Act,—

- (a) the planning permission shall by virtue of this section be deemed not to have effect so long as that land continues to be land within an area to which this Part of this Act applies ;
- (b) for the purposes of Part IV of the Act of 1962 anything done before the passing of this Act, as well as anything

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done after the passing of this Act at a time when that land continues to be land within such an area, shall, in so far as (apart from this subsection) it was development authorised by that planning permission, be deemed to have been done without the grant of planning permission; and

(c) for the purposes of section 2(3)(a) of this Act that planning permission shall be disregarded.

(6) Where in any proceedings (whether civil or criminal) it falls to be determined whether the provisions of the last preceding subsection have effect in relation to a grant of planning permission, and the question arises whether a building contract was made as mentioned in subsection (2)(b) of this section, the burden of proving that a building contract was so made shall be on the party who alleges it.

Office
development
permit where
retrospective
control
applies.

4. Where, in accordance with the provisions of the last preceding section, paragraphs (a) and (b) of subsection (5) of that section have effect in relation to planning permission granted for carrying out development on land within the metropolitan region, and an office development permit in respect of that development is issued under this Part of this Act, those paragraphs shall thereupon cease to have effect in relation to that planning permission.

Mixed
industrial
and office
development.

5.—(1) Subject to the following provisions of this section, the provisions of this Part of this Act shall have effect without prejudice to the operation of sections 38 and 39 of the Act of 1962 (which relate to industrial development); and, where the provisions of this Part of this Act and of those sections are applicable to the same application for planning permission, the requirements of both must be complied with.

(2) Where before the passing of this Act an application was made to the local planning authority for planning permission for development consisting of or including the erection on land in Greater London of a building containing office premises or consisting of or including the extension of a building on land in Greater London by the addition of office premises together with other premises, and—

(a) in accordance with sections 38 and 39 of the Act of 1962 an industrial development certificate was required for that development, and such a certificate was issued in respect of it by the Board of Trade, and

(b) planning permission for the development was granted before 5th November 1964,

then, notwithstanding that neither of the conditions specified in paragraphs (a) and (b) of subsection (2) of section 3 of this Act is fulfilled, the provisions of subsection (5) of that

section shall not have effect in relation to that planning permission.

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(3) Where by virtue of subsection (1) of section 3 of this Act the provisions specified in paragraphs (a) and (b) of that subsection have effect as therein mentioned in relation to an application for planning permission made before the passing of this Act, and under section 38 of the Act of 1962 an industrial development certificate was issued for the purposes of that application, then if—

- (a) an office development permit for the purposes of that application is withheld by the Board of Trade, and
- (b) the applicant wishes to proceed with the application in so far as it relates to development other than development to which this Part of this Act applies,

the applicant may notify the local planning authority accordingly, specifying the modifications subject to which the application is to be treated as having been made, and the Act of 1962 and any order or regulations made thereunder shall have effect in relation to the application as if it had been made as so modified.

6.—(1) An office development permit in respect of any development may be issued subject to such restrictions on the making of an application for planning permission for that development (whether as to the period within which, or the persons by whom, such an application may be made, or otherwise) as the Board of Trade consider appropriate in the exercise of their discretion as mentioned in section 1(4) of this Act; and, where an office development permit in respect of any development is issued subject to any such restrictions, and an application for planning permission for that development is made which does not comply with those restrictions, the provisions of this Part of this Act shall apply in relation to that application as if no such permit had been issued.

Restrictions
or conditions
attached
to office
development
permit.

(2) Without prejudice to the preceding subsection, an office development permit may be issued either unconditionally or subject to such conditions as the Board of Trade consider appropriate in the exercise of their discretion as mentioned in section 1(4) of this Act; and any reference in this Part of this Act to conditions attached to an office development permit is a reference to conditions subject to which such a permit is so issued.

(3) In so far as any of the conditions attached to an office development permit are of such a description that (apart from this section) they could not have been imposed under the Act

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of 1962, that Act shall apply in relation to any application for planning permission for the purposes of which that permit is required, and to any planning permission granted on such an application, as if the powers conferred by that Act included power to impose conditions of that description.

(4) Where conditions are attached to an office development permit, and, on an application for planning permission for the purposes of which that permit is required, planning permission is granted, the authority granting the permission shall grant it subject to those conditions, with or without other conditions.

(5) Planning permission to which the last preceding subsection applies shall not be invalid by reason only that the requirements of that subsection are not complied with ; but where—

- (a) any such planning permission is granted without complying with the requirements of that subsection, or
- (b) planning permission for carrying out development on land within the metropolitan region having been granted before the passing of this Act, an office development permit in respect of that development is issued in the circumstances specified in section 4 of this Act and conditions are attached to that permit,

the planning permission shall be deemed to have been granted subject to the conditions attached to the office development permit, or (if any other conditions were imposed by the authority granting the permission) shall be deemed to have been granted subject to the conditions attached to the permit in addition to the conditions so imposed.

Planning
permission
where no office
development
permit
required.

7.—(1) This section applies—

- (a) to any planning permission granted on or after 5th November 1964, but before the passing of this Act, for the erection of a building on land within the metropolitan region, and
- (b) to any planning permission granted after the passing of this Act for the erection of a building on land which, at the time when the planning permission is granted, is within an area to which this Part of this Act applies,

where (in either case) the erection of that building would not constitute development to which this Part of this Act applies or (if it would constitute such development) the circumstances are such that no office development permit is required for the erection of that building.

(2) Any planning permission to which this section applies, which was granted as mentioned in paragraph (a) of the preceding subsection, shall be deemed to have been granted subject

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to the following condition (in addition to any other conditions imposed by the authority granting the permission), that is to say, that the use of the building, whether as originally erected or as subsequently extended or altered, shall be restricted so that (whether in consequence of a change of use or otherwise) it does not at any time contain office premises having an aggregate office floor space which exceeds the prescribed exemption limit.

(3) Any planning permission to which this section applies, which is granted as mentioned in paragraph (b) of subsection (1) of this section, shall be granted subject to the condition specified in subsection (2) of this section, with or without other conditions.

(4) Planning permission to which the last preceding subsection applies shall not be invalid by reason only that the requirements of that subsection are not complied with; but in that case the permission shall be deemed to have been granted subject to the condition specified in subsection (2) of this section, or (if any other conditions are imposed by the authority granting the permission) shall be deemed to have been granted subject to the condition specified in subsection (2) of this section in addition to the conditions so imposed.

(5) In this section "the prescribed exemption limit", in relation to planning permission granted as mentioned in paragraph (a) of subsection (1) of this section, means 3,000 square feet, and, in relation to planning permission granted as mentioned in paragraph (b) of that subsection, means that number of square feet which, at the time when the planning permission is granted, is for the purposes of section 2 of this Act the prescribed exemption limit in relation to the land to which the planning permission relates, whether—

- (a) by virtue of subsection (6) of that section, or
- (b) if an order under subsection (7) of that section is for the time being in force and applies to the area, or part of an area, in which that land is situated, by virtue of that order.

8.—(1) This section applies to any condition subject to which planning permission is granted in accordance with the provisions of section 6 or section 7 of this Act, or subject to which planning permission is by virtue of either of those sections deemed to have been granted, whether it is a condition which could have been imposed apart from this Part of this Act or not.

Provisions as to conditions imposed or implied in pursuance of s. 6 or s. 7.

(2) If the planning permission is or was granted by the local planning authority, the Minister shall not be required to entertain an appeal under section 23 of the Act of 1962 from the decision of the local planning authority, in so far as that decision relates or related to any condition to which this section applies.

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(3) Where planning permission is granted subject to a condition to which this section applies, and it appears to the authority granting the permission that the condition could have been imposed apart from the provisions of this Part of this Act, and would have been imposed if this Part of this Act had not been enacted, the decision granting the permission may include a certificate to that effect; and, where such a certificate is included in a decision of the local planning authority—

(a) the Minister shall not be required to entertain an appeal from the decision in so far as it includes the certificate, but

(b) subject to the preceding paragraph, section 23 of the Act of 1962 shall have effect in relation to the certificate as it has effect in relation to any other part of the decision.

(4) On an appeal under section 46 of the Act of 1962 against an enforcement notice relating to anything done in contravention of a condition to which this section applies, the Minister shall not be required to entertain the appeal in so far as the appellant claims that planning permission free from that condition ought to be granted.

(5) No compensation under Part VI, Part VII or Part X of the Act of 1962 shall be payable in respect of the imposition of any condition to which this section applies.

(6) For the purposes of section 129(1)(b) of the Act of 1962 (which relates to purchase notices) no account shall be taken of any condition to which this section applies.

(7) Where planning permission has effect subject to a condition to which this section applies, and by reason of anything done in a particular part of a building that condition is contravened, any enforcement notice relating to the contravention shall be taken to be served on the owner and occupier of the land to which it relates if it is served on the owner and occupier of that part of the building, whether it is also served on any other person or not.

(8) If any condition imposed by an authority granting planning permission is inconsistent with any condition to which this section applies, the last-mentioned condition shall prevail in so far as it is inconsistent with the condition so imposed.

(9) Where on an application made as mentioned in section 20(1) of the Act of 1962 (as modified by section 11 of this Act) planning permission is granted (either unconditionally or subject to conditions) for a building to be retained, or a use of a building to be continued, without complying with a condition to which this section applies (that condition being one subject to which a previous planning permission was granted or is deemed to have been granted), nothing in section 6 or section 7 of this Act

or in the preceding provisions of this section shall be construed as preventing the subsequent planning permission from operating so as to extinguish or modify that condition, as the case may be.

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9.—(1) This section applies to any enforcement notice which—

Enforcement notices relating to land in Greater London.

(a) relates to the carrying out of development consisting of or including the erection or extension of a building on land in Greater London, and

(b) states that it is served on the grounds that, notwithstanding that planning permission for that development was granted before the passing of this Act, the development is by virtue of section 3(5) of this Act deemed to have been carried out without the grant of planning permission.

(2) An enforcement notice to which this section applies shall not be served except by the Minister or in pursuance of directions given by the Minister under section 207(4) of the Act of 1962.

(3) An enforcement notice to which this section applies—

(a) may be served on any person who, in pursuance of a building contract to which he is a party, is engaged in carrying out operations for the erection or extension of the building in question, in addition to any other persons on whom (by virtue of section 45(3) of the Act of 1962) the notice is required or authorised to be served ;

(b) may require any such operations to be discontinued forthwith, either instead of, or in addition to, any other steps which (in accordance with section 45(4)(b) of that Act) may be required by the notice to be taken.

(4) In so far as an enforcement notice to which this section applies requires any operations to be discontinued forthwith—

(a) the notice, notwithstanding anything in section 45(5) of the Act of 1962 (which provides that an enforcement notice shall take effect at the end of a period not less than 28 days after it is served), shall take effect immediately on its being served, and

(b) section 46(3) of that Act (whereby, on an appeal, an enforcement notice is of no effect while the appeal is pending) shall not apply to the notice ;

but nothing in this subsection shall affect the operation of section 45(5) or section 46(3) of that Act in relation to such a notice in so far as the notice requires any other steps to be taken.

(5) An enforcement notice to which this section applies shall specify a period (not being less than twenty-eight days after the

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(6) In relation to any enforcement notice to which this section applies, the grounds on which an appeal may be brought under section 46 of the Act of 1962 shall not include those specified in paragraphs (a) to (c) of subsection (1) of that section, but shall include the grounds specified in Schedule 1 to this Act ; and the grounds specified in that Schedule shall be deemed to be included among those mentioned in section 177(1) of that Act (which relates to the validity of enforcement notices).

(7) Where an enforcement notice to which this section applies requires any operations to be discontinued, any person on whom the notice has been served who continues those operations, or causes or permits them to be continued, in contravention of the notice shall be guilty of an offence and liable on summary conviction to a fine not exceeding £100.

(8) If, after a person has been convicted of an offence under the last preceding subsection, he further continues the operations (whether immediately or after an interval) in contravention of the notice, or causes or permits them to be so continued, he shall be guilty of a further offence and liable on summary conviction to a fine not exceeding £20 for each day on which he so continues the operations or causes or permits them to be so continued.

(9) Where an enforcement notice to which this section applies has been served, and either of the following events occurs, that is to say—

- (a) an office development permit is issued in respect of the development to which the notice relates, or
- (b) planning permission for any development of the land to which the notice relates is granted authorising (either unconditionally or subject to conditions) the operations to which the notice relates to be continued,

the enforcement notice shall not have effect in so far as it would prevent or restrict the doing of anything after that event occurs.

Power to
require
information
as to building
contracts.

10.—(1) Where it appears to the Board of Trade that, in accordance with planning permission granted before 5th November 1964, operations for the erection on land in Greater London of a building containing office premises, or for the extension of a building on land in Greater London by the addition of office premises, have been begun on or after that date (whether before or after the passing of this Act) or had

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been begun but not completed before that date or are about to begin, and no office development permit in respect of the erection or extension of that building has been issued, the Board may serve on any person who is—

- (a) the applicant on whose application the planning permission was granted, or
- (b) the owner of the land, or
- (c) the person carrying out or about to carry out the operations,

a notice under this section requiring him to furnish to the Board such information, and to produce for examination on behalf of the Board documents in his custody or under his control of any such description, as may be specified in the notice for the purpose of enabling the Board to ascertain whether a building contract for the erection or extension of the building was made before 5th November 1964 and who is the owner of the land.

(2) A notice under this section may require the information to which it relates to be furnished within such time as may be specified in the notice, and may require the documents to which it relates to be produced at such time and place as may be so specified:

Provided that the time specified in such a notice for furnishing any information or producing any document shall not be earlier than the end of the period of twenty-eight days after the service of the notice.

(3) If any person on whom a notice is served under this section fails without reasonable excuse to comply with a requirement imposed by the notice, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding £100; and if any such person—

- (a) in furnishing any information required by the notice, makes a statement which he knows to be false in a material particular, or recklessly makes a statement which is false in a material particular, or
- (b) produces for examination in accordance with the notice a document which to his knowledge has been wilfully falsified,

he shall be guilty of an offence and liable on summary conviction to a fine not exceeding £100 or imprisonment for a term not exceeding three months or both or on conviction on indictment to a fine or imprisonment for a term not exceeding two years or both.

(4) Where an offence under this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part

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of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(5) In this section “director”, in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.

Planning
permission to
retain buildings
or works or
continue
use of land.

11.—(1) The provisions of this section shall have effect in relation to—

- (a) applications for planning permission made (whether before or after the passing of this Act) as mentioned in section 20(1) of the Act of 1962 (in this section referred to as “section 20 applications”), and
- (b) planning permissions granted before the passing of this Act in accordance with section 20(2) of that Act (in this section referred to as “section 20 permissions”).

(2) An office development permit shall be required for the purposes of a section 20 application if the circumstances are such that, in accordance with this Part of this Act, such a permit would have been required if the application had been for planning permission to construct or carry out the building or works, or to institute the use of land, which the section 20 application seeks permission to retain or continue or (as the case may be) seeks permission to retain or continue without complying with a condition previously imposed.

(3) Where by virtue of the last preceding subsection an office development permit is required for the purposes of a section 20 application, subsections (3) and (4) of section 1 and subsection (1) of section 3 of this Act shall have effect in relation to that application accordingly.

(4) In relation to a section 20 permission relating to land within the metropolitan region, where the circumstances are such that any of the provisions specified in the next following subsection would have had effect in relation thereto if it had been a corresponding grant of planning permission for development, those provisions shall have effect as if it had been a corresponding grant of planning permission for development.

(5) The provisions referred to in the last preceding subsection are subsections (2) to (6) of section 3 and sections 4, 9 and 10 of this Act; and in the last preceding subsection “corresponding grant of planning permission for development”, in relation to a section 20 permission, means a grant of planning permission

to construct or carry out the buildings or works, or to institute the use of land, of which the section 20 permission authorises the retention or continuance or (as the case may be) authorises the retention or continuance without complying with a condition previously imposed.

12.—(1) This section applies to any purchase notice served on Purchase or after 5th November 1964 (whether before or after the passing of this Act) in respect of land within the metropolitan region, or served after the passing of this Act in respect of land which, at the date of service of the notice, is within an area to which this Part of this Act applies outside the metropolitan region, where either—

- (a) planning permission for the carrying out on that land, or part of it, of development to which this Part of this Act applies was granted before the passing of this Act, but by virtue of section 3(5) of this Act that planning permission is for the time being deemed not to have effect, or
- (b) the purpose for which that land, or part of it, is or was used at the date of service of the notice, or was last used before that date, is or was that of a building containing office premises.

(2) In relation to a purchase notice to which this section applies, the provisions of the Act of 1962 shall have effect as if, after subsection (4) of section 132 of that Act (action by Minister in relation to purchase notice), there were inserted the following subsection:—

“(4A) Where the purchase notice is one to which section 12 of the Control of Office and Industrial Development Act 1965 applies, the Minister may, if he thinks fit, determine not to confirm the notice without taking any such action as is mentioned in subsections (2) to (4) of this section”.

and as if, in subsection (5) of that section, after the words “not to confirm the purchase notice” there were inserted the words “either in pursuance of subsection (4A) of this section or”.

(3) Where in pursuance of subsection (4A) of the said section 132 (as modified by the last preceding subsection) the Minister has determined not to confirm a purchase notice to which this section applies, and on a subsequent date the land to which that notice related ceases to be within an area to which this Part of this Act applies,—

- (a) a further purchase notice may be served on or after that date in respect of the planning decision to which the previous notice related, and
- (b) for the purposes of any regulations made under the Act of 1962 as to the time within which a purchase

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notice may be served, the service of such a further purchase notice shall not be treated as out of time if it is served within the period which would be applicable in accordance with those regulations if the planning decision referred to in the preceding paragraph had been made on that subsequent date.

(4) In determining, for the purposes of subsection (1)(b) of this section, for what purpose any land is used, or was last used, as the case may be, no account shall be taken—

- (a) of any use in accordance with planning permission granted for a limited period, or
- (b) of any use in respect of which, before the date of service of the purchase notice, an enforcement notice had been served and had become effective, or
- (c) of any use of land at a time when it is or was not covered by a building.

**Service of
notices.**

13. Section 214 of the Act of 1962 (service of notices) shall have effect in relation to the service on any person of a notice which (not being authorised or required to be served on him under that Act) is authorised or required to be served on him by virtue of this Part of this Act, as that section has effect in relation to notices authorised or required to be served under that Act.

Annual report.

14. As soon as may be after the end of March 1966 and after the end of March in each subsequent year the Board of Trade shall prepare a report on the performance of their functions under this Part of this Act, and shall lay the report before Parliament.

**Meaning of
"office
premises".**

15.—(1) Subject to the following provisions of this section, in this Part of this Act "office premises" means premises falling within either of the following descriptions, that is to say—

- (a) premises whose sole or principal use is to be use as an office or for office purposes ;
- (b) premises to be occupied together with premises falling within the preceding paragraph and to be so occupied wholly or mainly for the purposes of the activities to be carried on in the last-mentioned premises.

(2) Where, in relation to an application for planning permission for the erection of a building, or in relation to a grant of such planning permission, it falls to be determined, for the purposes of the preceding subsection, what is to be the sole or principal use of any premises to be contained in the building, regard shall be had—

- (a) in the case of an application for planning permission, to the proposed use (as indicated in the application) of the building or of different parts of the building, and

PART I

- (b) in the case of a grant of planning permission, to the purposes specified in the planning permission as those for which the building, or different parts of the building, may be used.

(3) Where, in relation to an application for planning permission for the extension or alteration of a building, or in relation to a grant of such planning permission, it falls to be determined, for the purposes of subsection (1) of this section, what is to be the sole or principal use of any premises which are to be added to the building or altered within it (in this subsection referred to as "the new premises"), regard shall be had—

- (a) in the case of an application for planning permission, to the proposed use (as indicated in the application) of the new premises, and
- (b) in the case of a grant of planning permission, to the purposes specified in the planning permission as those for which the new premises may be used.

(4) For the purposes of the application of this Part of this Act in relation to development in so far as it consists of a change in the use of land, and for the purposes of sections 7(2) and 12 of this Act, "office premises" (subject to the following provisions of this section) means premises falling within either of the following descriptions, that is to say—

- (a) premises whose sole or principal use is as an office or for office purposes ;
- (b) premises occupied together with premises falling within the preceding paragraph and so occupied wholly or mainly for the purposes of the activities carried on in the last-mentioned premises ;

and for the purposes of paragraph (a) of this subsection any question as to sole or principal use, in relation to premises contained in a building, shall be determined by reference to those premises alone and not by reference to the building taken as a whole.

(5) In this section "office purposes" includes the purposes of administration, clerical work, handling money, telephone and telegraph operating and the operation of computers, and "clerical work" includes writing, book-keeping, sorting papers, filing, typing, duplicating, punching cards or tapes, machine calculating, drawing and the editorial preparation of matter for publication.

(6) The Board of Trade may by order provide that premises of any description specified in the order, or premises used or to be used for any purposes so specified, shall not be office premises for the purposes of this Part of this Act.

PART I
Interpretation
of Part I.

16.—(1) In this Part of this Act “premises” means a part of a building, “building” includes any structure, and “erection”, in relation to a building, includes re-erection; “building contract” means a contract (other than a lease) which is made in relation to land whereby a person undertakes to erect or extend a building on that land in the course of the carrying on by him of a business consisting wholly or mainly of the execution of building operations, or of building operations and engineering operations; and “the metropolitan region” (subject to the next following subsection) means Greater London together with the areas specified in Schedule 2 to this Act.

(2) For the purposes of this Part of this Act—

(a) land shall be taken to be, and at all material times to have been, in Greater London if it is in the area which constituted Greater London on 1st April 1965;

(b) land shall be taken to be, and at all material times to have been, in an area specified by name in Schedule 2 to this Act if it is in the area bearing that name on 1st April 1965 as that area was constituted on that date.

(3) In this Part of this Act “office floor space” means gross floor space comprised in office premises; and for the purposes of this Part of this Act the amount of any such space shall be ascertained by external measurement of that space, whether the office premises in question are or are to be bounded (wholly or partly) by external walls of a building or not.

(4) Subsections (1), (4) and (5) of section 221 of the Act of 1962 (interpretation), with the exception of the definitions of “building” and of “erection” in relation to buildings in subsection (1) of that section, shall apply for the purposes of this Part of this Act as they apply for the purposes of that Act.

(5) In this Part of this Act any reference to the granting of planning permission for the carrying out of any development of land is a reference to the granting of planning permission for that development—

(a) either in respect of that land taken by itself or in respect of that land together with other land, and

(b) either on an ordinary application or on an outline application (that is to say, an application for planning permission subject to subsequent approval on any matters).

(6) Any reference in this Part of this Act to a building containing office premises includes a reference to a building of which every part consists or is to consist of office premises;

and any reference in this Part of this Act to the addition of office premises includes a reference to the addition of office premises together with other premises.

PART I

(7) Any reference in this Part of this Act to an application made as mentioned in section 20(1) of the Act of 1962 includes a reference to an application which by virtue of section 64(2) of that Act (which relates to appeals against enforcement notices) is deemed to have been made for such planning permission as is mentioned in section 20(2) of that Act.

17. Any order made under this Part of this Act which designates an area in Scotland for the purposes of section 1(2)(b) of this Act may contain such provisions as appear to the Board of Trade to be requisite for the purposes of substituting in this Part of this Act, in its application to that area, for references therein to provisions of the Act of 1962, references to the corresponding provisions of the enactments for the time being in force in Scotland relating to town and country planning, and otherwise for adapting this Part of this Act to those enactments.

Application
of Part I to
Scotland.

18.—(1) Unless Parliament otherwise determines, the preceding provisions of this Part of this Act shall cease to have effect at the end of the period of seven years beginning with the date on which this Act is passed.

Temporary
operation of
Part I.

(2) Where immediately before the end of that period any planning permission has effect subject to a condition subject to which the planning permission is by virtue of this Part of this Act deemed to have been granted, the planning permission shall, as from the end of that period, have effect free from that condition.

(3) Where immediately before the end of that period any planning permission has effect subject to a condition imposed by the authority granting the permission in circumstances where that authority was required by this Part of this Act to impose that condition, then unless the condition is the subject of a certificate under section 8 (3) of this Act, the planning permission shall, as from the end of that period, have effect free from that condition.

(4) An enforcement notice to which section 9 of this Act applies shall not operate so as to prevent or restrict the doing of anything after the end of that period.

(5) Notwithstanding anything in this section, subsection (3) of section 12 of this Act shall not cease to have effect at the end of that period; and in relation to any land which, immediately before the end of that period, is land within an area to which this Part of this Act applies, any reference in that subsection to the date on which the land ceases to be within such an area shall be construed as a reference to the end of that period.

PART I
1889 c. 63.

(6) Subject to the preceding provisions of this section, at the end of that period section 38(2) of the Interpretation Act 1889 (which relates to the effect of repeals) shall apply as if this Part of this Act had, as from the end of that period, been repealed by another Act.

PART II**INDUSTRIAL DEVELOPMENT**

Power to vary
exemption
limit as to
industrial
floor space.

19.—(1) The Board of Trade may by order direct that subsection (1) of section 39 of the Act of 1962 (whereby an exemption from the requirement of an industrial development certificate is conferred by reference to the creation of industrial floor space within a limit of 5,000 square feet) shall be amended by substituting, for the number of square feet specified in that subsection as originally enacted or as previously amended under this subsection, such number of square feet as may be specified in the order being not less than 1,000 square feet.

(2) Any amendment made by an order under this section may be made so as to have effect either in relation to the whole of England and Wales or in relation only to a part of England and Wales specified in the order.

(3) Any amendment made by such an order shall have effect—

(a) in relation to applications for planning permission relating to land in any area to which the order applies which are made on or after the date on which the order comes into operation, and

(b) in relation to applications relating to land in such an area which have been made before that date, other than any application on which a planning decision has been made before that date.

(4) Where in accordance with the last preceding subsection an amendment made by such an order has effect in relation to an application for planning permission made before the date on which the order comes into operation, so much of section 38(1) of the Act of 1962 as requires a copy of an industrial development certificate to be furnished to the local planning authority together with the application shall have effect in relation to that application with the substitution, for the words “together with the application”, of the words “as soon as practicable after the certificate is issued”.

(5) In the application of this section to Scotland there shall be substituted, for any reference to England and Wales, a reference to Scotland, and, for references to section 38(1) and section 39(1) of the Act of 1962, references respectively to section 12(4) of the Town and Country Planning (Scotland) Act 1947 and section 19(2) of the Local Employment Act 1960.

1947 c. 53.
1960 c. 18.

20.—(1) In subsection (1) of section 39 of the Act of 1962, after the words “the development in question”, there shall be inserted the words “(in this section referred to as ‘the proposed development’)” ; subsection (3) of that section, except the definition of “industrial floor space”, shall cease to have effect; and the following subsections shall be added at the end of that section :—

PART II
Amendment
of section 39
of Act of 1962.

“(4) For the purposes of subsection (1) of this section development shall, in relation to an application for planning permission (in this section referred to as ‘the relevant application’), be taken to be ‘related development’ if—

- (a) it related, or is to relate, to the same building as that to which the proposed development is to relate (in this subsection referred to as the ‘relevant building’), or
- (b) it related, or is to relate, to a building which is, or is to be, contiguous or adjacent to the relevant building, and it was, or is to be, development comprised in, or for the purposes of, the same scheme or project or for the purposes of the same undertaking as the proposed development,

and (in either case) it fulfils one or other of the conditions mentioned in the next following subsection.

(5) The said conditions are—

- (a) that it is development for which, before the date of the relevant application, planning permission has been granted by a planning decision made on or after 1st April 1960 ;
- (b) that it is development which has been initiated on or after 1st April 1960 but before the date of the relevant application and is not development for which planning permission has been granted by a planning decision made on or after 1st April 1960 ;
- (c) that it is development in respect of which an application to the local planning authority for planning permission either is pending on the date of the relevant application or is made on that date.

(6) For the purposes of paragraph (c) of the last preceding subsection, an application is pending on a particular date if—

- (a) it is made before that date and not withdrawn, and
- (b) no planning decision on that application has been made before that date.

PART II

(7) In subsection (4) of this section and in this subsection 'building' does not include a part of a building; and any reference in subsection (4) of this section to development relating to a building is a reference to the erection, extension, alteration or re-erection of the building or a change of use of the whole or part of the building."

(2) In accordance with the preceding subsection, but subject to the next following subsection, section 39 of the Act of 1962 shall have effect as set out in Schedule 3 to this Act.

(3) The amendments made by subsection (1) of this section shall have effect, and section 39 of the Act of 1962 shall accordingly have effect as set out in the said Schedule, whether the relevant application (as defined by subsection (4) of that section as so set out) was made before or is made after the passing of this Act, unless on that application a planning decision has been made before the passing of this Act.

Amendment
of section 19
of Local
Employment
Act 1960.
1960 c. 18.

21.—(1) In section 19 of the Local Employment Act 1960—

(a) in subsection (2), after the words "the development in question" there shall be inserted the words "(in this section referred to as 'the proposed development')"; and for the words from "any other development relating to the same building" to the words "since the commencement of this Act" there shall be substituted the words "any related development"; and for the words from "any such other development" to the end of the subsection there shall be substituted the words "any related development, any floor space created or to be created by that development or by development carried out, or for which planning permission under Part II of the Town and Country Planning (Scotland) Act 1947 has been granted, before the issue of the certificate";

(b) after subsection (2) there shall be inserted the following subsections:—

"(2A) For the purposes of the last foregoing subsection development shall, in relation to an application for planning permission (in this section referred to as 'the relevant application'), be taken to be 'related development' if—

(a) it related, or is to relate, to the same building as that to which the proposed development is to relate (in this subsection referred to as the 'relevant building'), or

(b) it related, or is to relate, to a building which is, or is to be, contiguous or adjacent to the relevant building, and it was, or is to be, development comprised in, or for the

1947 c. 53.

PART II

purposes of, the same scheme or project or for the purposes of the same undertaking as the proposed development, and (in either case) it fulfils one or other of the conditions mentioned in the next following subsection.

(2B) The said conditions are—

- (a) that it is development for which, before the date of the relevant application, planning permission has been granted by a planning decision made on or after 1st April 1960;
- (b) that it is development which has been initiated on or after 1st April 1960 but before the date of the relevant application and is not development for which planning permission has been granted by a planning decision made on or after 1st April 1960;
- (c) that it is development in respect of which an application to the local planning authority for planning permission either is pending on the date of the relevant application or is made on that date.

(2C) For the purposes of paragraph (c) of the last foregoing subsection, an application is pending on a particular date if—

- (a) it is made before that date and not withdrawn, and
- (b) no planning decision on that application has been made before that date.

(2D) In subsection (2A) of this section and in this subsection 'building' does not include a part of a building, and any reference in subsection (2A) of this section to development relating to a building is a reference to the erection, extension, alteration, or re-erection of the building or a change of use of the whole or part of the building." ; and

(c) in subsection (3) the words from "and 'group'" to the end of the subsection shall cease to have effect.

(2) In accordance with the preceding subsection, but subject to the next following subsection, the said section 19 shall have effect as set out in Schedule 4 to this Act.

(3) The amendments made by subsection (1) of this section shall have effect, and the said section 19 shall accordingly have effect as set out in the said Schedule, whether the relevant application (as defined by subsection (2A) of that section as so

PART II set out) was made before or is made after the passing of this Act, unless on that application a planning decision has been made before the passing of this Act.

**Interpretation
of Part II.**

22.—(1) Subsections (1), (4) and (5) of section 221 of the Act of 1962 shall apply for the purposes of this Part of this Act, in its application to England and Wales, as they apply for the purposes of that Act.

(2) In relation to Scotland—

- 1954 c. 73. (a) expressions used in this Part of this Act and in Part II of the Town and Country Planning (Scotland) Act 1954 have in this Part the same meanings as they have in that Part ;
- 1960 c. 18. (b) the expression “ industrial development certificate ” has in this Part of this Act the same meaning as in Part II of the Local Employment Act 1960 ; and
- 1959 c. 70. (c) subsections (3), (4) and (7) of section 69 of the said Act of 1954, and subsection (9) of section 54 of the Town and Country Planning (Scotland) Act 1959, shall apply for the purposes of this Part of this Act as they apply for the purposes of those Acts respectively.

PART III

SUPPLEMENTARY PROVISIONS

**Provisions as
to orders.**

23.—(1) Any power conferred by this Act to make an order shall be exercisable by statutory instrument, and shall include power to vary or revoke the order by a subsequent order.

(2) Any order under this Act may contain such transitional, supplementary and incidental provisions as may appear to the Board of Trade to be appropriate.

(3) Any order under this Act which designates an area for the purposes of section 1(2)(b) of this Act shall cease to have effect at the end of the period of twenty-eight days beginning with the day on which the order is made (but without prejudice to anything previously done under the order or to the making of a new order) unless before the end of that period the order is approved by a resolution of each House of Parliament.

(4) In reckoning any period for the purposes of the last preceding subsection, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(5) Any statutory instrument containing an order made under this Act, other than any such order as is mentioned in subsection (3) of this section, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

24.—(1) Anything required or authorised by or under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board or any person authorised in that behalf by the President.

PART III
Performance
of functions
of Board
of Trade.

(2) Any administrative expenses incurred by the Board of Trade in consequence of the provisions of this Act (including any increase attributable to this Act in the administrative expenses of the Board of Trade under any other enactment) shall be defrayed out of moneys provided by Parliament.

25.—(1) In this Act “the Act of 1962” means the Town and Country Planning Act 1962.

Interpretation,
and supple-
mentary
provisions.
1962 c. 38.

(2) In this Act any reference to land in Greater London, or within the metropolitan region, or within any other area to which Part I or an order under Part II of this Act applies, shall be construed as a reference to land of which any part is within the area in question.

(3) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment, including this Act.

(4) In relation to England and Wales, section 199(1)(b) of the Act of 1962 (whereby the restrictions imposed by certain provisions of that Act apply to a limited extent to Crown land) shall have effect as if the provisions of this Act (except sections 17 and 21 thereof) were included in Part III of that Act.

(5) In relation to Scotland, section 83(2)(b) of the Town and Country Planning (Scotland) Act 1947 (whereby the restrictions imposed by certain provisions of that Act apply to a limited extent to Crown land) shall have effect as if the provisions of this Act, in its application to Scotland, were included in Part II of that Act.

1947 c. 53.

26.—(1) This Act may be cited as the Control of Office and Industrial Development Act 1965.

Short title,
citation and
extent.

(2) The Town and Country Planning Acts 1962 and 1963 and this Act may be cited together as the Town and Country Planning Acts 1962 to 1965; and the Town and Country Planning (Scotland) Acts 1947 to 1963 and this Act may be cited together as the Town and Country Planning (Scotland) Acts 1947 to 1965.

(3) This Act shall not extend to Northern Ireland.

SCHEDULES

Section 9.

SCHEDULE 1

SPECIAL GROUNDS OF APPEAL AGAINST ENFORCEMENT NOTICES
UNDER SECTION 9

1. That the development to which the enforcement notice relates does not consist of or include the erection on land in Greater London of a building containing office premises, or the extension of a building on land in Greater London by the addition of office premises.

2. That a building was erected before 5th November 1964, or (as the case may be) the building in question was before that date extended, in accordance with planning permission for the development to which the enforcement notice relates.

3. That a building contract was made before that date which specifically related to the land, or part of the land, in respect of which planning permission was granted for the development to which the enforcement notice relates and which provided for the erection thereon of such a building as is mentioned in paragraph 1 of this Schedule, or for the making of such an extension as is mentioned in that paragraph, in accordance with that planning permission.

4. That the office floor space to be created by the development to which the enforcement notice relates does not exceed 3,000 square feet.

5. That an industrial development certificate was required for development consisting of or including the development to which the enforcement notice relates and that such a certificate was issued in respect of it by the Board of Trade.

SCHEDULE 2

Section 16.

METROPOLITAN REGION OUTSIDE GREATER LONDON

1. In Bedfordshire—

the borough of Dunstable,
the urban district of Leighton-Linslade,
the rural district of Luton.

2. In Berkshire—

the boroughs of Maidenhead, New Windsor and Wokingham,
the rural districts of Bradfield, Cookham, Easthampstead,
Windsor and Wokingham.

3. In Buckinghamshire—

the boroughs of Aylesbury, High Wycombe and Slough,
the urban districts of Beaconsfield, Bletchley, Chesham, Eton
and Marlow,
the rural districts of Amersham, Aylesbury, Eton, Wing and
Wycombe.

4. In Essex—

the borough of Chelmsford,

- the urban districts of Basildon, Benfleet, Brentwood, Canvey Island, Epping, Harlow, Rayleigh, Thurrock, Waltham Holy Cross and Chigwell, SCH. 2
the rural districts of Chelmsford, Epping and Ongar and Rochford.
5. In Hampshire—
the borough of Aldershot,
the urban districts of Farnborough and Fleet,
the rural district of Hartley Wintney.
6. The administrative county of Hertfordshire.
7. In Kent—
the boroughs of Chatham, Dartford, Gravesend, Gillingham, Maidstone, Rochester and Royal Tunbridge Wells,
the urban districts of Northfleet, Sevenoaks, Southborough, Swanscombe and Tonbridge,
the rural districts of Dartford, Maidstone, Malling, Sevenoaks, Strood and Tonbridge.
8. In Oxfordshire—
the borough of Henley-on-Thames,
the rural district of Henley.
9. The administrative county of Surrey.
10. In East Sussex—
the urban districts of Burgess Hill, Cuckfield and East Grinstead,
the rural districts of Cuckfield and Uckfield.
11. In West Sussex—
the urban districts of Crawley and Horsham,
the rural district of Horsham.
12. The county borough of Luton.
13. The county borough of Reading.
14. The county borough of Southend-on-Sea.

SCHEDULE 3

SECTION 39 OF THE TOWN AND COUNTRY PLANNING ACT 1962, AS AMENDED

Section 20.

39.—(1) Notwithstanding anything in the last preceding section, an industrial development certificate shall not be required if the industrial floor space to be created by the development in question (in this section referred to as "the proposed development"), together with any other industrial floor space created or to be created by any related development, does not exceed five thousand square feet, excluding, where an industrial development certificate has been issued in respect of any related development, any floor space created or to be created by that development or by development carried out, or for which planning permission has been granted, before the issue of that certificate. Exemption of certain classes of development.

SCH. 3

(2) Regulations made for the purposes of the last preceding section by the Board of Trade may direct that no industrial development certificate shall be required in respect of the erection, in any area prescribed by or under the regulations, of industrial buildings of any such class as may be so prescribed, or in respect of a change of use whereby premises in any such area, not being an industrial building of a class so prescribed, will become an industrial building of such a class.

(3) In this section "industrial floor space" means floor space comprised in an industrial building or industrial buildings of any of the prescribed classes.

(4) For the purposes of subsection (1) of this section development shall, in relation to an application for planning permission (in this section referred to as "the relevant application"), be taken to be "related development" if—

- (a) it related, or is to relate, to the same building as that to which the proposed development is to relate (in this subsection referred to as the "relevant building"), or
- (b) it related, or is to relate, to a building which is, or is to be, contiguous or adjacent to the relevant building, and it was, or is to be, development comprised in, or for the purposes of, the same scheme or project or for the purposes of the same undertaking as the proposed development,

and (in either case) it fulfils one or other of the conditions mentioned in the next following subsection.

(5) The said conditions are—

- (a) that it is development for which, before the date of the relevant application, planning permission has been granted by a planning decision made on or after 1st April 1960 ;
- (b) that it is development which has been initiated on or after 1st April 1960 but before the date of the relevant application and is not development for which planning permission has been granted by a planning decision made on or after 1st April 1960 ;
- (c) that it is development in respect of which an application to the local planning authority for planning permission either is pending on the date of the relevant application or is made on that date.

(6) For the purposes of paragraph (c) of the last preceding subsection, an application is pending on a particular date if—

- (a) it is made before that date and not withdrawn, and
- (b) no planning decision on that application has been made before that date.

(7) In subsection (4) of this section and in this subsection "building" does not include a part of a building ; and any reference in subsection (4) of this section to development relating to a building is a reference to the erection, extension, alteration or re-erection of the building or a change of use of the whole or part of the building.

SCHEDULE 4

Section 21.

SECTION 19 OF THE LOCAL EMPLOYMENT ACT 1960 (IN ITS APPLICATION TO SCOTLAND), AS AMENDED

19.—(1) An industrial development certificate shall not be required for the extension of an industrial building if the extension, taken by itself, would not be an industrial building of one of the prescribed classes, but (subject to the provisions of this section) shall be required for the extension of any building if the extension, taken by itself, would be such an industrial building. Minor amendments as to industrial development certificates.

(2) Paragraph (a) of the proviso to the principal enactment (under which an industrial development certificate is not required for a building or extension not exceeding a specified size) shall cease to have effect, but such a certificate shall not be required if the industrial floor space to be created by the development in question (in this section referred to as "the proposed development") together with any other industrial floor space created or to be created by any related development does not exceed five thousand square feet, excluding, where an industrial development certificate has been issued in respect of any related development, any floor space created or to be created by that development or by development carried out, or for which planning permission under Part II of the Town and Country Planning (Scotland) Act 1947 has been granted, before the issue of the certificate. 1947 c. 53.

(2A) For the purposes of the last foregoing subsection development shall, in relation to an application for planning permission (in this section referred to as "the relevant application"), be taken to be "related development" if—

- (a) it related, or is to relate, to the same building as that to which the proposed development is to relate (in this subsection referred to as the "relevant building"), or
- (b) it related, or is to relate, to a building which is, or is to be, contiguous or adjacent to the relevant building, and it was, or is to be, development comprised in, or for the purposes of, the same scheme or project or for the purposes of the same undertaking as the proposed development,

and (in either case) it fulfils one or other of the conditions mentioned in the next following subsection.

(2B) The said conditions are—

- (a) that it is development for which, before the date of the relevant application, planning permission has been granted by a planning decision made on or after 1st April 1960;
- (b) that it is development which has been initiated on or after 1st April 1960 but before the date of the relevant application and is not development for which planning permission has been granted by a planning decision made on or after 1st April 1960;
- (c) that it is development in respect of which an application to the local planning authority for planning permission either is pending on the date of the relevant application or is made on that date.

SCH. 4

(2C) For the purposes of paragraph (c) of the last foregoing subsection, an application is pending on a particular date if—

(a) it is made before that date and not withdrawn, and

(b) no planning decision on that application has been made before that date.

(2D) In subsection (2A) of this section and in this subsection “building” does not include a part of a building, and any reference in subsection (2A) of this section to development relating to a building is a reference to the erection, extension, alteration, or re-erection of the building or a change of use of the whole or part of the building.

(3) In this section “industrial floor space” means floor space comprised in an industrial building or industrial buildings of any of the prescribed classes.

1947 c. 53.

(4) Nothing in subsection (1) of section 16 of the Town and Country Planning (Scotland) Act 1947 shall be construed as requiring an industrial development certificate on an application for permission for the retention on land of an industrial building or the continuance of any use of land.